



Procedure No: EXP202212034 (PS/702/2022)

SANCTIONING PROCEDURE RESOLUTION

From the actions carried out by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On 19/10/22, A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection.

The complaint was directed against the entity TECH TALENTS, S.L. with CIF: B87010468 (hereinafter, the respondent), for the alleged violation of data protection regulations: Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27/04/16, regarding the Protection of Natural Persons concerning the Processing of Personal Data and the Free Movement of such Data (GDPR), Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), and Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

The reasons stated in the complaint were, in essence, the following:

The facts begin with the sending of commercial communications by the company Tech Talents SL, to which I have not consented at any time.

In any case, upon receiving such commercial shipments, I decided to unsubscribe from this company's newsletter through the link provided in the emails sent. Through the following website (<https://forms.zohopublic.eu/info793/form/Unsubscribe/formperma/LHxWn8n0rW0w1BHqscyWL3DbZhbuVIUsKM8iM CchdjQ>), I requested to be unsubscribed on two occasions, on 24/03/2022 and 23/05/2022.

This website already warns that the unsubscription service may take up to ONE YEAR (evidence attached). In any case, on both occasions, I did not receive an acknowledgment of receipt of said request, nor was the unsubscription request effective.

Given the impossibility of accessing another type of avenue or contact to exercise this right because the information is not included in any of their communications or their website, I sent an email to info@agritechtalents.es on 23/05/2022 (a copy of the email is attached). At no time did the company respond with an acknowledgment of receipt or a confirmation that my data would be deleted. After the month stipulated in the GDPR for such actions, I continued to receive commercial communications from the mentioned newsletter, showing that my right to deletion has not been duly exercised. Emails were received on 22/07/2022 and 20/09/2022, but given the limitation on the number of pieces of evidence, I attach a copy of the email received on 20/09 and the requested headers.

The complaint submission includes the following documentation:

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- Copy of the email sent from the complainant's address ***EMAIL.1, on 23/05/22 to the email address "AGR Tech Talents" info@agritechtalents.es with the following message:

o Since your button to "Unsubscribe from the newsletter" does not work (I have tried more than once, and this is despite the fact that I had not even subscribed to any of your newsletters in the first place), I formalize my demand that any type of personal data, including this email, be deleted from your databases (...)

- Copy of the email sent from the email address "AGR Tech Talents" info@agritechtalents.es, on 20/09/22, to the complainant's email address, ***EMAIL.1 containing the following advertising message:

o "Are you thinking about a new professional challenge? If you are considering a professional change or just want to stay updated on offers and news from the TECH world, you can keep up to date in two ways:

LinkedIn Group - <https://www.linkedin.com/groups/9124437/>

Telegram Channel - <https://t.me/ofertasTI>

SECOND: On 14/11/22, in accordance with the provisions of Article 65.4 of the LOPDGDD, this Agency forwarded the complaint to the respondent, for them to analyze it and inform, within one month, about what was stated in the complaint.

- According to the certificate from the Electronic Notifications and Electronic Address Service, the request sent to the respondent on 14/11/22 was made available to them on 17/11/22, through the electronic notification service "NOTIFIC@", being automatically marked as rejected on 28/11/22. The notice of the electronic notification was sent to the address "info@agritechtalents.es"

- Although the notification was validly carried out by electronic means, a copy was sent by postal mail to the address: TECH TALENTS, S.L. AV. DE BRUSELAS, 16, BAJO LOCAL 28108 ALCOBENDAS MADRID, which was returned to sender on 13/12/22 with the message "unknown," attempted a second time on 27/12/22, and was also returned to sender with the message "unknown."

THIRD: On 30/12/22, the Director of the Spanish Agency for Data Protection issued an agreement to admit the processing of the complaint filed, in accordance with Article 65 of the LPDGDD, upon noting possible rational indications of a violation of the rules within the scope of the competencies of the Spanish Agency for Data Protection.

FOURTH: On 23/02/23, the Director of the Spanish Agency for Data Protection initiated sanctioning proceedings against the respondent, to the

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to appreciate reasonable indications of violation of the provisions established in Article 21 of the LSSI, with an initial sanction of 2,000 euros (two thousand euros), for the sending of a commercial communication by the entity being claimed without it having been requested or expressly authorized by the recipient.

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According to a certificate from the Postal Service, the sending of the initiation of the file that was carried out to the entity being claimed at the address: TECH TALENTS, S.L. AV. DE BRUSELAS, 16, BAJO LOCAL 28108 ALCOBENDAS MADRID, was returned to the sender on 02/03/23 with the message "unknown."

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And on 06/03/23, the notification of the initiation agreement was made through an announcement in the Unique Edict Board of the Official State Gazette, in accordance with Article 44 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP).

FIFTH: On 19/04/23, the proposal for resolution was made in which it was proposed that the Director of the Spanish Agency for Data Protection proceed to sanction the entity being claimed, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), for the infringement of Article 21 of the LSSI, classified as "minor" in Article 38.4.d) of said regulation, for sending advertising emails without it having been requested or expressly authorized by the recipient, with a sanction of 2,000 euros (two thousand euros).

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According to a certificate from the Electronic Notifications and Electronic Address Service, the request document sent to the claimed party on 19/04/23 was made available to the entity on 22/04/23, through the electronic notifications service "NOTIFIC@," being recorded as automatically rejected on 03/05/23. The notice of the electronic notification was sent to the address hello@techtalents.es.

PROVEN FACTS.

From the actions carried out in this procedure and from the information and documentation presented, the following facts have been established:

First: The complaint document provides relevant documentation for the case, among which is:

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A copy of the email sent from the claimant's address ***EMAIL.1, on 23/05/22 to the email address "AGR Tech Talents" info@agrtechtalents.es with the following message:

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"Since your button to 'Unsubscribe from the newsletter' does not work (I have tried more than once, and that I hadn't even subscribed to any of your newsletters in the first place), I formalize my demand that any type of personal data, including this email, be removed from your databases (...)"

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A copy of the email sent from the address "AGR Tech Talents" info@agrtechtalents.es, on 20/09/22, to the claimant's email address, ***EMAIL.1 containing the following advertising message:

o

"Are you thinking about a new professional challenge? If you are considering a professional change or just want to stay updated on offers and news from the TECH world, you can keep up to date in two ways:

LinkedIn Group - <https://www.linkedin.com/groups/9124437/>
Telegram Channel - <https://t.me/ofertasTI>

LEGAL GROUNDS

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Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this Sanctioning Procedure, in accordance with the provisions established in Article 43.1, second paragraph, of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

II.-

On the sending of emails with advertising messages having previously opposed it:

According to the documents provided by the claimant, it has been verified that she received a commercial communication from the entity being claimed without it having been requested or expressly authorized by her.

II.-2

Classification of the possible infringement committed

Article 21 of the LSSI provides as follows:

"1. The sending of advertising or promotional communications by email or other equivalent electronic communication means that have not been previously requested or expressly authorized by the recipients is prohibited.

2. The provisions of the previous section shall not apply when there is a prior contractual relationship, provided that the provider has lawfully obtained the contact details of the recipient and uses them to send commercial communications regarding products or services of its own company that are similar to those initially contracted with the client.

In any case, the provider must offer the recipient the possibility of opposing the processing of their data for promotional purposes through a

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simple and free procedure, both at the time of data collection and in each of the commercial communications sent to you.

When communications have been sent by email, this means must necessarily include an email address or another valid electronic address where this right can be exercised, and the sending of

communications that do not include such an address is prohibited.”

III.-3

Sanction

The facts presented constitute a violation of Article 21 of the LSSI by the entity being complained about for sending a promotional email without having been previously requested or expressly authorized by the recipient.

The aforementioned infringement is classified as "minor" in Article 38.4.d) of said regulation, which qualifies as such, “The sending of commercial communications by email or other equivalent electronic means when such communications do not meet the requirements established in Article 21 and do not constitute a serious infringement.”

According to the provisions of Article 39.1.c) of the LSSI, minor infringements may be sanctioned with a fine of up to €30,000.

Based on these criteria, it is deemed appropriate to impose a sanction of €2,000 (two thousand euros) for the infringement of Article 21 of the LSSI regarding the sending of a promotional email without having been previously requested or expressly authorized for it by the recipient.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO IMPOSE on the entity, TECH TALENTS, S.L. with CIF: B87010468, a sanction of €2,000 (two thousand euros) for the infringement of Article 21 of the LSSI regarding the sending of a promotional email without having been previously requested or expressly authorized for it by the recipient.

SECOND: TO NOTIFY this resolution to the entity TECH TALENTS, S.L.

THIRD: To warn the sanctioned party that the imposed sanction must be paid once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it into the restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., or otherwise, collection will proceed in the executive period.

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Upon receipt of the notification and once it is enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route (Article 48.6 of the LOPDGDD), and in accordance with the provisions of Articles 112 and 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned legal text. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the firm resolution in the

administrative route may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by writing addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency does not become aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

Mar España Martí

Director of the Spanish Agency for Data Protection.

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